

Iqwal v. State of U.P. and others

Allahabad High Court · Division Bench · 28 November 2022 · WRIT - C No. 28256 of 2022 · **Writ disposed of; petitioner relegated to Executive Engineer under Clause 6.5.**

HEADNOTE

Without examining the merits of a dispute over computation of an electricity bill and an alleged notice, the High Court disposed of the writ by relegating the consumer to a Clause 6.5 representation before the Executive Engineer, Electricity Distribution Division, Bulandshahr, with a direction that any representation filed within three weeks be decided by a reasoned speaking order preferably within four weeks.

FACTUAL SUMMARY

Iqwal petitioned the Allahabad High Court against the State of Uttar Pradesh and others over computation of his electricity bill and a notice allegedly issued against him. The 11 November 2022 sitting was adjourned when none appeared to press the petition and notice had not been served on respondent no. 4. On 28 November 2022 both sides were heard. The supply area in issue is Electricity Distribution Division, Bulandshahr.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing computation — Clause 6.5 remittal

HOLDING

A writ raising a dispute over computation of an electricity bill and an alleged notice is disposed of by relegating the petitioner to the Executive Engineer, Electricity Distribution Division, Bulandshahr under Clause 6.5 of the Electricity Supply Code, 2005; if a representation is filed within three weeks with a copy of the order, the competent authority shall decide it by a reasoned speaking order preferably within four weeks.

¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The Court declined merits examination of the billing and notice dispute and disposed of the writ by sending the consumer to Clause 6.5. ¶ 1

clause-6.5-representation-executive-engineer The petitioner was directed to approach the Executive Engineer, Electricity Distribution Division, Bulandshahr by a Clause 6.5 representation, to be decided on a time-bound speaking order if filed within three weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL COMPUTATION AND VALIDITY OF THE ALLEGED NOTICE

Left to the Executive Engineer under Clause 6.5. ¶ 1